legislation and executive decisions on matters of constitutionality.[14] The resignation of the first bench in 2012 was a result of tensions between the president, the parliament and the Constitutional Tribunal in relation to the powers of parliamentary committees. This led to amendment to the law in 2013 which reduced the finality of decisions of the tribunal, although this appears to have been restored by further amendments in 2014.[15] The Constitutional Tribunal has insisted it derives its authority primarily from the constitution, and that therefore all of its decisions are final and binding on the government. The distrust displayed by the parliament towards the Constitutional Tribunal has provoked intermittent discussions about abolishing the tribunal and potentially giving jurisdiction for constitutional review to the Supreme Court, yet this will not be able to occur unless the constitution is formally amended. The proposed constitutional amendments in 2015 instead included measures that would have reduced the independence of the Supreme Court by reducing the term of judges to five years, and limiting the authority of decisions of the Constitutional Tribunal. This proposal was unsuccessful.

The reforms introduced in terms of structural governance have created new institutions — including parliament, state governments, and the Constitutional Tribunal among others — and reformed existing institutions, leading to new forms of institutional and political conflict. The laws, and proposals for constitutional amendment, have sought to manage conflict by centralizing power in the president and confining the role of the courts.

ECONOMIC AND BUSINESS REFORMS: CONFLICT BETWEEN COMMERCIAL STAKEHOLDERS

Aside from this first wave of structural reforms, the second theme that many new laws address is economic reforms geared towards more foreign investment and the market economy,[16] including in the banking sector, establishment of special economic zones, and potential reform of the Company Law. These laws manage conflict between commercial stakeholders, the public and private sectors, foreigners and locals, and military businesses. However, these economic reforms have also generated conflict between local stakeholders, and between local stakeholders and foreign investors, in particular by raising fears that such reforms may be too generous to foreign investors. One reason for these laws was to open